

25NWCV02512 25NWCV02512

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DARLINE VENTURA, ET AL. v. TLT CARE ENDEAVOR, LLC, ET AL.

CASE NO.: 25NWCV02512

HEARING: 09/03/2026 @ 9:30 AM

#10

TENTATIVE ORDER

I.

Plaintiff's motions to compel responses

to form interrogatories, set two and requests for production of documents, set two are GRANTED. Plaintiff's motion to deem the truth of the matters specified in requests for admissions, set two, admitted is GRANTED.

II.

Plaintiff's request for monetary

sanctions against Defendant is GRANTED in the total amount of \$2,080.

Moving party to give notice.

Plaintiff Darline Ventura, by and through her Successor in

Interest, Claudine Tregarthen (Plaintiff) moves to compel Defendant TLT Care Endeavor, LLC dba European Christian Home V (Defendant or Facility) to provide responses to (1) form interrogatories (FROGs), set two; (2) requests for production (RPDs), set two; and (3) to deem the truth of the matters specified in requests for admissions (RFAs) set one, admitted as to Defendant.

Background

On July 10, 2025, Plaintiffs Darline Ventura, by and through her successor in interest, Claudine Tregarthen; Claudine Tregarthen; Eugene Casem; Theodore Casem; Cynthia Casem Jackson Ferguson; and Wesley Casem filed this elder abuse action against Defendants TLT Care Endeavor, LLC dba European Christian Home V; Thomas Trice, and Does 1 through 250. This action arises out of the alleged wrongful death of Darline Ventura (Decedent) on July 28, 2024 while in the care and custody of Facility, administered by Trice. (Complaint, ¶¶ 17-18.) The complaint alleges that despite a series of falls and unexplained injuries between July 21, 2023 and July of 2024, Facility and Trice implemented a fall risk care plan too late and Decedent passed away eighteen days after a third fall on July 21, 2024. (Complaint, ¶¶ 31-44.) The complaint asserts three causes of action: (1) elder abuse and neglect; (2) negligence; and (3) wrongful death.

Legal Standard

Interrogatories

A party to whom interrogatories are propounded must respond within 30 days of service of the interrogatories. (Code Civ. Proc., § 2030.260.) If a party fails to serve a timely response, the party propounding interrogatories may move for an order compelling responses. (§ 2030.290.) Additionally, “the party to whom the interrogatories are directed waives any right to exercise the option to produce writings under Section 2030.230, as well as any objection to the interrogatories, including one based on privilege or on the protection for work product.” (Code Civ. Proc., § 2030.290.)

Requests for Production

Under Code of Civil Procedure section 2031.260 subdivision (a), a party must respond to requests for production of documents within 30 days of service. Failure to do so waives all objections including privilege or on the protection of work product. (See Code Civ. Proc., § 2031.300, subd. (a).)

Requests

for Admission

Under Code of Civil Procedure section 2033.250 subdivision

(a), a party must respond to requests for admission within 30 days of service. Failure to do so waives all objections including privilege or on the protection of work product. (Code Civ. Proc., § 2033.280 subd. (a).) “The requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction.” (Code Civ. Proc., § 2033.280 subd. (b).) The court “shall” grant a motion to deem admitted requests for admissions, “unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220.” (Code Civ. Proc., § 2033.280 subd. (c).)

Discussion

Plaintiff moves to compel Defendant to provide verified responses, without objections, to sets two of FROGs and RPDs, and to deem the truth of the matters asserted in RFAs, set two, admitted as to Defendant. Plaintiff moves on the grounds that Defendant has failed to respond to the discovery requests. These motions are unopposed.

Plaintiff states that it served Defendant with the subject discovery on December 9, 2025, making responses due by January 12, 2026. (Hunter Decs., ¶¶ 2-3.) Plaintiff’s counsel then granted extensions making responses due by February 4, 2026. (Hunter Decs., ¶¶ 4-6.) As of the date Plaintiff filed these motions, Defendant had not provided any responses. (Hunter Decs., ¶ 7.) Plaintiff therefore establishes that she properly served Defendant and that Defendant failed to respond to the discovery.

Accordingly, Plaintiff’s motions to compel responses to form interrogatories, set two and requests for production of documents, set two are GRANTED. Plaintiff’s motion to deem the truth of the matters specified in requests for admissions, set two, admitted is GRANTED.

Defendant TLT Care Endeavor, LLC dba European Christian Home is ORDERED to serve verified responses, without objections, to form interrogatories, set two and requests for production of documents, set two within 30 days of this Order.

Defendant TLT Care Endeavor, LLC dba European Christian Home is DEEMED to have admitted the truth of the matters specified in requests for admissions, set two.

Sanctions

Plaintiff requests monetary sanctions against Defendant for the failure to provide verified and timely discovery responses.

Pursuant to Code of Civil Procedure sections 2030.290, subdivision (c) and 2031.300, subdivision (c) “[t]he court shall impose a monetary sanction...against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to interrogatories [or demand for production], unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” Under Code of Civil Procedure section 2033.280, subdivision (c), “[i]t is mandatory that the court impose a monetary sanction...on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion.”

The Court finds monetary sanctions warranted against Defendant for the failure to respond to discovery without substantial justification. Plaintiff request \$3,760 for each motion reflecting Plaintiff's counsel's hourly rate of \$900, 1 hour to prepare each motion and 2 hours to review oppositions and reply. (Hunter Decls., ¶ 7.) Plaintiff requests \$1,000 for a court reporter (noting that this may be reimbursed since all motions will be heard concurrently) and \$60 in filing fees. (Hunter Decls., ¶ 7.) The Court finds this amount unreasonably excessive given the simplicity of the motions, that they motions are unopposed, and that the three motions will be heard concurrently. The Court also finds the high hourly rate unsupported. The Court grants \$900 in attorney's fees for all three motions, a total of \$1,000 for the court reporter (which may be adjusted as necessary if raised in the hearing), and \$60 in filing fees per motion.

Accordingly, Plaintiff's request for attorney's fees is GRANTED in the amount of \$2,080 against Defendant. Defendant is ORDERED to pay this amount within 30 days of this Order.

Moving party to give notice.